

HOUSE BILL 850

By Reneau

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 8; Title 38; Title 39; Title 40 and Title 44,
relative to searches.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 38, Chapter 3, is amended by adding the following as a new section:

(a) Except as provided in subsection (b), an official who is employed or contracted by the federal government, the state government, or a local government within this state, or an agency or department thereof, including a peace officer, inspector, and wildlife official, shall, prior to entering private property to conduct a search, obtain a search warrant, as described in § 40-6-106, that identifies the person or property that is the subject of the search.

(b) An official is not required to obtain a search warrant pursuant to subsection (a) if a judicially recognized exception to the warrant requirement exists at the time of the search.

(c) An official who knowingly fails to obtain a search warrant when a search warrant is required by this section commits a Class C misdemeanor.

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it.